

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
BARBARA HOLMES, individually and as Mother and
Natural Guardian of ZL, a minor child,

Plaintiffs,

against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER GEORGE LAYNG,
and POLICE OFFICERS JOHN DOE 1-10,Defendants.
-----X

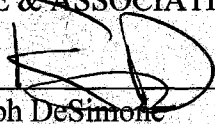
To the above-named Defendant(s):

PLEASE TAKE NOTICE THAT YOU ARE HEREBY SUMMONED to answer the complaint of the plaintiff(s) herein and to serve a copy of your answer on the plaintiff(s) at the address indicated below within 20 days after the service of this Summons (not counting the day of service itself), or within 30 days after service is complete if the Summons is not delivered personally to you within the State of New York.

YOU ARE HEREBY NOTIFIED THAT should you fail to answer, a judgment will be entered against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 29, 2022

DeSIMONE & ASSOCIATES, LLC

By: 

Ralph DeSimone

Attorney for Plaintiff

745 Fifth Avenue, Suite 500
New York, New York 10151
(646) 776-7425Defendants' addresses:CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT

One Police Plaza

New York, New York 10038

POLICE OFFICER GEORGE LAYNG

One Police Plaza

New York, New York 10038

POLICE OFFICERS JOHN DOE 1-10

One Police Plaza

New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X

BARBARA HOLMES, individually and as Mother and
Natural Guardian of ZL, a minor child,

Plaintiffs,

Index No.: _____

-against-

VERIFIED COMPLAINT

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER GEORGE LAYNG,
and POLICE OFFICERS JOHN DOE 1-10,

(Venue is based on the
location where the causes of
action arose under CPLR
504(3))

Defendants.

-----X

Plaintiff, Barbara Holmes, individually and as Mother and Natural Guardian of ZL, a
minor child, by her attorneys DeSimone & Associates, LLC, by way of Verified Complaint
against defendants, City of New York, New York City Police Department, Police Officer George
Layng and Police Officers John Doe 1 – 10 alleges as follows:

PRELIMINARY STATEMENT

1. This is an action, in which plaintiff, Barbara Holmes, individually and as Mother
and Natural Guardian of ZL, a minor child, (“Plaintiff” or “Holmes”) seeks compensatory and
punitive damages, an award of costs, interest and attorneys’ fees, and such other and further
relief as this Court deems just and proper, for wrongful acts of defendant, City of New York
(“CONY”), New York Police Department (“NYPD”), Police Officer George Layng (“Officer
Layng”) and Police Officers John Doe 1 – 10. Plaintiff brings this lawsuit alleging against
Defendants claims of unlawful arrest and false imprisonment, negligent performance of police
duties, negligent training, supervision and retention of New York City Police Officers, violation

of civil rights under 42 U.S.C. §1983, and emotional distress causing Holmes and ZL severe physical and emotional harm.

JURISDICTION AND VENUE

2. The Court has personal jurisdiction over Defendants under CPLR 301 because Defendants conduct business in the State of New York.

3. Venue is proper under CPLR §504(3) because Bronx County is the county within the City of New York in which the causes of action arose.

PARTIES

4. Plaintiff, Barbara Holmes, a resident of the State of New York, County of Bronx, is the Mother and Natural Guardian of ZL, a minor child with a birthdate of [REDACTED]

5. Defendant, City of New York ("CONY") is a municipal corporation organized and existing under the laws of the State of New York with its principal place of business located at City Hall and/or One Centre Street, New York, New York.

6. Defendant, New York City Police Department ("NYPD") is a law enforcement entity promulgated and existing pursuant to New York City Charter, having its principal place of business in the City of New York, State of New York.

7. Defendant, Police Officer George Layng ("Officer Layng") is a duly employed law enforcement officer of the NYPD.

8. Upon information and belief, Police Officers John Doe 1 – 10 are duly employed law enforcement officers of the NYPD.

TIMELINESS OF ACTION

9. Pursuant to Gen. Mun. L. §50-e, Plaintiff has filed with the Comptroller of the City of New York a timely Notice of Claim.

10. A statutory hearing pursuant to Gen. Mun. L. 50-h was held on March 16, 2022.

11. Since service of the Notice of Claim, no adjustment or payment has been made by any Defendant.

12. Plaintiff has complied with all statutory conditions precedent to the commencement of this action as against the Defendants.

STATEMENT OF FACTS

13. On September 10, 2021 at approximately 6:10 p.m. Officers George Layng and John Doe of the NYPD falsely arrested ZL in Mullaly Park, located at Jerome Ave to River Avenue between E 164th Street and McClellan Street at Cromwell Avenue in the Bronx, New York.

14. Officer Layng and Officer John Doe arrested ZL without probable cause based on racial profiling.

15. After arrest, the NYPD falsely imprisoned ZL.

16. The NYPD, Officers Layng and John Doe acting under color of state law mistakenly arrested and incarcerated ZL on the false grounds that he committed robbery.

17. ZL was eventually released and not prosecuted.

18. ZL spent at least one night falsely imprisoned by the NYPD.

19. At all times mentioned herein, the NYPD refused to allow Holmes to speak or see her minor son, ZL.

20. The NYPD did not permit ZL to contact his mother Holmes by telephone or otherwise.

21. As a result of this false arrest and imprisonment, ZL suffered the trauma, debasement and fright from being unlawfully arrested and imprisoned; irreparable psychological damage from being placed in confinement as a teenager; loss of quality of life; future pain and suffering; future psychological treatment bills; and future diminution of income.

22. As a result of this false arrest and imprisonment, Holmes suffered: trauma and fright resulting from the NYPD wrongful arrest and imprisonment of her son; loss of wages; and pain and suffering.

**FIRST CAUSE OF ACTION
(Unlawful Arrest)**

23. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this Verified Complaint with the same force and effect as if fully set forth at length herein.

24. During the course of confrontation and wrongful police action, ZL, who was within his lawful right to enter Mullaly Park, was arrested without any justification or probable cause based on racial profiling, and was aware that he was under arrest.

25. As a consequence of the arrest, ZL was wrongfully incarcerated for at least one day.

26. Defendant, CONY, pursuant to New York City Charter, is responsible for the acts and omission of its law enforcement agencies, including the NYPD.

27. Defendant, NYPD is responsible for the conduct of its law enforcement Officers, including, Officer Layng and John Doe.

28. It was the intent of Defendants to confine ZL without the consent of ZL or Holmes.

29. As a result of this illegal confinement and false imprisonment, ZL suffered from unlawful touch, embarrassment, ridicule, emotional distress and damage to his reputation.

30. Acting under the color of law and with motive and intent to exert duress, intimidate and cause fear, Defendants deprived ZL of his rights which was the direct and proximate result of Defendants' actions.

31. The overnight incarceration of ZL was egregious, unnecessary and retaliatory and deliberately staged to strike harm in ZL.

32. The actions of Defendants were reckless and demonstrated a callous indifference to the legally protected rights of ZL.

33. Based on the foregoing, Defendants are jointly and severally liable to ZL for compensatory and punitive damages in an amount to be determined at trial as a result of the unlawful arrest and false imprisonment of ZL.

**SECOND CAUSE OF ACTION
(Battery)**

34. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this Verified Complaint with the same force and effect as if fully set forth at length herein.

35. It was the intent of Defendants not just to confine ZL under arrest, but to place him in apprehension and fear of injury by Defendants through unlawful physical action and contact.

36. Defendant did strike fear into ZL by their actions and that such actions constitute a battery on ZL.

37. Such wrongful conduct of Defendants constitutes a callous indifference to the legally protected rights of ZL.

38. Based on the foregoing, Defendants are jointly and severally liable to ZL for compensatory and punitive damages in an amount to be determined at trial as a result of the battery inflicted on ZL.

THIRD CAUSE OF ACTION
(Negligent Performance of Police Duties)

39. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this Verified Complaint with the same force and effect as if fully set forth at length herein.

40. Defendants owe the public, including ZL a duty of care to provide competent police services.

41. Defendants breached that duty by falsely arresting and imprisoning ZL without probable cause based on racial profiling.

42. As a result of Defendant's negligence in performing police duties, ZL suffered: the trauma, debasement and fright from being unlawfully arrested and imprisoned; irreparable psychological damage from being placed in confinement as a teenager; loss of quality of life; future pain and suffering; future psychological treatment bills; and future diminution of income.

43. Based on the foregoing, Defendants are jointly and severally liable to ZL for compensatory and punitive damages in an amount to be determined at trial as a result of the negligence in performing police duties of Defendants.

**FOURTH CAUSE OF ACTION AGAINST CONY & NYPD
(Negligent Training, Supervision & Retention of Police Officers)**

44. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this Verified Complaint with the same force and effect as if fully set forth at length herein.

45. Defendant CONY, as a municipality, and NYPD, as a police department, have a duty of care to provide competent training to all police officers such that citizens such as ZL are not falsely arrested and imprisoned based on racial profiling.

46. Defendant CONY, as a municipality, and NYPD, as a police department, have a duty of care to citizens such as ZL to properly supervise police officers in order to ensure that citizens are not falsely arrested and imprisoned based on racial profiling.

47. Defendant CONY, as a municipality and NYPD, as a police department, have a duty of care to citizens such as ZL to dismiss those police officers that are unfit to protect members of the public.

48. Defendants CONY and NYPD breached their duty to ZL by failing to properly train and supervise Officers Layng and John Doe and negligently retained both officers despite knowing that Officers Layng and John Doe engage in pattern and practice of racial profiling.

49. As a proximate result of the negligence of CONY and NYPD, ZL suffered trauma, debasement and fright from being unlawfully arrested and imprisoned; irreparable psychological damage from being placed in confinement as a teenager; loss of quality of life; future pain and suffering; future psychological treatment bills; and future diminution of income.

50. Based on the foregoing, Defendants CONY and NYPD are jointly and severally liable to ZL for compensatory and punitive damages in an amount to be determined at trial as a result of the negligent training, supervision and retention of Officers Layng and John Doe.

**FIFTH CAUSE OF ACTION
(Violation of the Civil Rights of ZL)**

51. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this Verified Complaint with the same force and effect as if fully set forth at length herein.

52. Defendants CONY and NYPD are obligated under the U.S. Constitution to adopt an official policy, procedure, pattern of conduct that ensures that its Police Officers, such as Officer Layng and John Doe protected the citizens of the City of New York by not engaging in racial profiling.

53. Defendants CONY and NYPD under color of law failed to adopt an official policy, procedure, and pattern of conduct to ensure that the citizens, including minors such as ZL are protected from unlawful arrest and false imprisonment based on racial profiling.

54. As a result, ZL was unlawfully arrested without probable cause based on racial profiling and falsely imprisoned in violation of the rights afforded to him under the U.S. Constitution in violation of 42 U.S.C. §1983.

55. Officer Layng and John Doe are under an obligation under the Fourth Amendment to the U.S. Constitution to protect the citizens of the City of New York from unreasonable search and seizure.

56. Acting under color of law, Officer Layng and John Doe unlawfully arrested ZL without probable cause based on racial profiling and falsely imprisoned him which constitutes an unreasonable search and seizure of his person under the Fourth Amendment to the U.S. Constitution in violation of 42 U.S.C. §1983.

57. As a proximate result of wrongful and unconstitutional acts of Defendants, ZL suffered trauma, debasement and fright from being unlawfully arrested and imprisoned;

irreparable psychological damage from being placed in confinement as a teenager; loss of quality of life; future pain and suffering; future psychological treatment bills; future diminution of income; compensatory and punitive damages.

58. Based on the foregoing, Defendants have violated the civil rights of ZL as protected by the U.S. Constitution and is entitled to statutory award of damages under 42 U.S.C. §1983, including an award of attorneys' fees pursuant to 42 U.S.C. §1988.

**SIXTH CAUSE OF ACTION
(Intentional Infliction of Emotional Distress)**

59. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this Verified Complaint with the same force and effect as if fully set forth at length herein.

60. As a proximate result of the unlawful arrest and false imprisonment of ZL based on racial profiling by Defendants, Holmes and ZL suffered trauma, debasement and fright; irreparable psychological damage; loss of quality of life; future pain and suffering; future psychological treatment bills; and future diminution of income.

61. The actions of Defendants were an egregious and retaliatory act, deliberately staged to willfully harm Holmes and ZL.

62. Based on the foregoing, Defendants are jointly and severally liable to Holmes, individually and as mother to her minor son, ZL for compensatory and punitive damages in an amount to be determined at trial as a result of the intentional infliction of emotional distress on Holmes and ZL.

**SEVENTH CAUSE OF ACTION
(Negligent Infliction of Emotional Distress)**

63. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs of this Complaint with the same force and effect as if fully set forth at length herein.

64. By unlawfully arresting and falsely imprisoning ZL based on racial profiling, Defendants acted in blatant disregard of the high degree of probability of the severe emotional distress and physical harm that Holmes and ZL would directly suffer.

65. Such wrongful conduct committed by Defendants was outrageous and extreme as to go beyond all possible bounds of decency and to be regarded as atrocious and utterly intolerable in a civilized community.

66. The unlawfully arrest and false imprisonment of ZL, proximately caused Holmes and ZL to directly suffer severe physical harm and emotional distress.

67. Based on the above, Defendants are jointly and severally liable to Holmes, individually and as mother to her minor son, ZL for compensatory and punitive damages in an amount to be determined at trial as a result of its negligent infliction of emotion distress.

WHEREFORE, Plaintiff, Barbara Holmes, individually and as Mother and Natural Guardian of her minor son ZL, a minor, demands the following relief, jointly and severally, against Defendants City of New York, New York City Police Department, Officer George Layng and Officer John Does 1 -10:

- A. Compensatory damages in an amount to be determined by jury at the time of trial;
- B. Punitive damages in an amount to be determined by jury at the time of trial;
- C. Attorneys' fees, costs and interest; and
- D. Such other and further relief as this Court deems just and proper.

Dated: New York, New York
March 29, 2022

A handwritten signature in black ink, appearing to be 'RD' with a stylized flourish underneath.

RALPH DESIMONE, ESQ.
DESIMONE & ASSOCIATES. LLC
745 Fifth Avenue, Suite 500
New York, New York 10151
(646) 776-7425 (telephone)
(212) 207-3111 (facsimile)

VERIFICATION

STATE OF NEW YORK)

:ss.:

COUNTY OF NEW YORK)

RALPH DESIMONE, being duly sworn, deposes and says:

I am the attorney for plaintiff Barbara Holmes, Individually and as Mother and Natural Guardian of her minor son, ZL ("plaintiff") in this action. I have read the foregoing Verified Complaint; know the contents thereof and the same is true to my knowledge except as to matters therein stated to be alleged upon information and belief.

The reason that I submit this Verification is because plaintiff does not reside within the New York County where I maintain an office.

Dated: New York, New York
March 29, 2022


RALPH DESIMONE

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

----- X

BARBARA HOLMES, individually and as Mother and
Natural Guardian of ZL, a minor child,

Plaintiff(s),

Index No.: _____

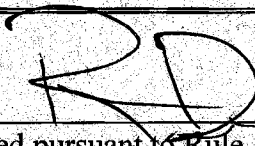
-against-

CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER GEORGE LAYNG,
and POLICE OFFICERS JOHN DOE 1-10,

Defendant(s).

----- X

SUMMONS & COMPLAINT



Signed pursuant to Rule 130-1.1.a

DESIMONE & ASSOCIATES, LLC
Attorneys for Plaintiff(s)
BARBARA HOLMES, individually and as Mother and
Natural Guardian of ZL, a minor child
745 Fifth Avenue, Suite 500
New York, NY 10151

Tel: (646) 776-7425